

24NWCV01849 24NWCV01849

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Case Number: 24NWCV01849 Hearing Date: August 19, 2026 Dept: D

VANESSA SOTELO BECERRA V. GENERAL MOTORS LLC, ET AL.

CASE NO.: 24NWCV01849

HEARING: 08/19/2026 @ 9:30 a.m.

#13

TENTATIVE ORDER

Plaintiff Vanessa Sotelo Becerra's motion for attorney's fees is
GRANTED.

Defendant General Motors LLC's motion to strike, or in the alternative,
tax the memorandum of costs filed by Plaintiff Vanessa Sotelo Becerra is GRANTED
IN PART and DENIED IN PART.

Defendant General Motors LLC is ordered to pay the awarded amount
within 45 days of this Order.

Moving parties to give notice.

Plaintiff Vanessa Sotelo Becerra (Plaintiff) moves for an order awarding
attorney's fees, costs, and expenses in the amount of \$39,506.00.

Defendant General Motors LLC (Defendant) moves to strike the memorandum
of costs filed by Plaintiff, or in the alternative, tax costs.

Background

This is a lemon law action. On June 14, 2024, Plaintiff filed the operative Complaint against Defendant, George Chevrolet, and Does 1 through 50, inclusive, asserting four causes of action: (1) Violation of Song-Beverly Act—Breach of Express Warranty; (2) Violation of Song-Beverly Act—Breach of Implied Warranty; (3) Violation of the Song-Beverly Act Section 1793.2(b); and (4) Violation of Civil Code Section 1796.5.

Motion for Attorney's Fees

If a buyer-plaintiff prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorneys' fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794 (d).)¿

Here, it is undisputed that Plaintiff is the prevailing party in this action and is entitled to reasonable attorneys' fees. The only issue pending before this court is the amount of the award.

Reasonableness of Hourly Rate

Plaintiff's counsel requests the following hourly rates:

- Christopher Urner: \$525
- Jonathan Mora: \$450
- Jorge L. Acosta: \$450 (2025); \$350 (2024); \$250 (2023; law clerk)
- Mary M. Zazueta (paralegal): \$250

(Acosta Decl., ¶ 15, Ex. A.)

The matter of reasonableness of a party's attorney fees is within the

sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) Normally, a “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) That amount may then be adjusted through the consideration of various factors, including “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Defendant’s opposition does not challenge Plaintiff’s requested hourly rates.

The Court finds that Plaintiff has shown that their requested hourly rates reflect the prevailing market rates for attorneys of comparable skill and experience in the relevant community. Plaintiff’s attorneys take cases on a contingency and, unlike defense counsel who work for large companies, there is no guarantee that Plaintiff’s attorneys will get paid when they agree to take a case. It is not unreasonable that the hourly rates for plaintiffs’ lemon law attorneys are higher than the hourly rates for defense counsel in certain circumstances.

Accordingly, the Court concludes that Plaintiff’s requested rates are reasonable.

Reasonableness of Hours Billed

The trial court has an obligation to award only those attorneys’ fees that are reasonable. (See PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).) Although a verified fee bill is “prima facie evidence the costs, expenses and services listed were necessarily incurred,” (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682), counsel still has the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.)

Plaintiff seeks an award of attorney's fees based on 101.9 hours of billed time, resulting in a lodestar of \$37,612.50 and request a 0.3 lodestar multiplier for a total fee award of \$48,896.25. (Motion pp. 16-17.)

The Court has reviewed and considered Plaintiff's counsel's attached billing records, together with Defendant's objections to the reasonableness of certain billing entries.

· Counsel billed 0.6 hours on September 10 and 13, 2023, in connection with preparation of the attorney-client agreement and communications with Plaintiff concerning the agreement and the collection of service records and financial documents. Although Defendant characterizes all of this time as noncompensable administrative overhead, the September 13 entry also includes substantive efforts to obtain documents relevant to evaluating Plaintiff's claims. The Court therefore declines to strike the entries in their entirety. However, the Court finds that the 0.2 hours billed solely to draft the attorney-client agreement constitutes administrative client-intake work and will strike 0.2 hours.

· Counsel billed 1.4 hours on June 9, 2024, to review Plaintiff's repair history and notes, research possible applicable class action lawsuits, and prepare a memorandum regarding the same. Defendant argues that time spent researching potential class action claims was unrelated to the Song-Beverly claims ultimately prosecuted in this action. Because the entry combines review of Plaintiff's repair history with research concerning potential class action claims, the Court declines to strike the entry in its entirety. However, the Court finds a reduction warranted for time devoted to research concerning claims not pursued in this action and will strike 0.7 hours.

· Counsel billed a total of 4.4 hours on August 3, 2024, to research the NHTSA database and technical service bulletins, prepare a memorandum concerning applicable TSBs and recalls, and prepare and revise a repair chronology. Defendant contends this work was excessive and partially duplicative of counsel's earlier review of Plaintiff's repair records. The Court agrees that some duplication occurred, but finds that review of applicable recalls, technical service bulletins, and Plaintiff's repair history was reasonably related to prosecution of the action. The Court

finds that 2.5 hours was reasonably necessary for these tasks and will strike 1.9 hours.

· Counsel billed approximately 7.3 hours between August 3 and November 11, 2024, to review GM's first set of discovery and prepare, revise, finalize, and verify Plaintiff's responses. Defendant argues that the discovery requests and responses were substantially based on templates routinely used in Song-Beverly litigation and requests that the Court limit all such work to 1.0 hour. Although the Court agrees that the use of standardized discovery warrants some reduction, Defendant's proposed one-hour limitation does not reasonably account for counsel's obligation to review the requests, tailor responses to Plaintiff's circumstances, confer with Plaintiff, and finalize the responses. The Court finds that 4.5 hours was reasonably necessary and will strike 2.8 hours.

· Counsel billed 2.4 hours on September 6 and 8, 2024, to prepare and finalize Plaintiff's written discovery and PMK deposition notice to GM. Defendant submits evidence that these discovery requests and deposition notices were substantially similar to materials counsel has used in other Song-Beverly cases. While the use of templates does not render the work noncompensable, it reduces the amount of time reasonably necessary to perform it. The Court finds that 1.5 hours was reasonably necessary and will strike 0.9 hours.

· Counsel billed 4.8 hours on September 6 and November 5, 2024, to prepare and revise written discovery directed to George Chevrolet. Defendant contends the requests were substantially similar to standardized discovery used by counsel in other Song-Beverly actions. Given the repetitive nature of the requests and the substantial overlap among the form interrogatories, special interrogatories, requests for admission, and requests for production, the Court finds the time excessive. The Court finds that 2.5 hours was reasonably necessary and will strike 2.3 hours.

· Counsel billed 1.7 hours on November 15, 2024, to organize, separate, and label GM's document production, separate documents for attorney review, name the documents, and update the case file. Although organization of a document production may facilitate substantive attorney review, the billing entry consists predominantly of clerical tasks. The Court finds that 0.5 hours was reasonably compensable for substantive review-related organization and will strike 1.2 hours.

· Counsel billed a combined 31.9 hours in connection with motions to compel further discovery responses from GM and George Chevrolet, including preparation of the motions, declarations, separate statements, review of opposition papers, preparation of replies, and related hearing work. Defendant requests that the Court reduce this time to only 8.0 hours because the motions were substantially template-based. In reply, Plaintiff argues that the motion practice was necessitated by GM's failure to provide adequate discovery responses and that GM should therefore bear the resulting fees. The Court is not persuaded that this warrants awarding the full amount requested. Whether GM failed to comply with its discovery obligations was addressed in connection with the individual discovery motions, and any discovery misuse warranting monetary sanctions was properly addressed in those proceedings. The present motion concerns the reasonable amount of fees incurred in prosecuting the action, not whether GM should be further penalized for the conduct underlying the discovery disputes. The Court nevertheless declines to impose Defendant's proposed reduction because the billing records reflect multiple separate motions involving different categories of discovery, as well as opposition, reply, and hearing work. However, given the substantial overlap among the motions and related briefing, the Court finds that 24.0 hours was reasonably necessary and will strike 7.9 hours.

· Counsel billed 6.6 hours in connection with motions to compel the PMK depositions of GM and George Chevrolet, including preparing the motions, reviewing the oppositions, preparing replies, and related hearing work. Defendant argues that these motions were substantially template-based and seeks to reduce the time to 4.0 hours. As discussed above, although the Court recognizes that the motions involved separate discovery disputes and related briefing, the substantial overlap between the two motions and their supporting papers warrants some reduction. The Court finds Defendant's requested reduction somewhat excessive, however, and concludes that 5.0 hours was reasonably necessary. Accordingly, the Court will strike 1.6 hours.

· Counsel billed 2.7 hours on August 26 and September 24, 2025, in connection with GM's supplemental document production and supplemental verification. The billing records reflect that 1.5 hours was spent separating documents for attorney review, naming documents, and updating the case file, while an additional 1.1 hours was billed for substantive attorney review of the production. The Court finds the 1.5-hour entry predominantly clerical and excessive in relation to the substantive review performed. The Court finds that 1.7 hours was reasonably necessary for the combined tasks and will strike 1.0 hour.

· Counsel billed 0.4 hours on December 30, 2025, to prepare Plaintiff's settlement check for personal pickup. The Court finds this task administrative in nature and will strike 0.4 hours.

· Counsel billed 0.2 hours on January 13, 2026, to review the Court's minute order and update the file. Although review of the Court's order is compensable, updating the case file is clerical in nature. Because the entry combines substantive and clerical work, the Court finds that 0.1 hour was reasonably necessary and will strike 0.1 hour.

· Counsel billed 3.8 hours on April 21, 2026, to review billing records, prepare the motion for attorney fees and supporting declaration and proposed order, and prepare the memorandum of costs. Counsel additionally seeks 5.5 hours of anticipated time to review Defendant's opposition, prepare Plaintiff's reply, prepare for the hearing, and attend the hearing, for a total of 9.3 hours related to the fee motion. Although time reasonably incurred in preparing and litigating a fee motion is compensable, the Court finds the total time requested excessive given counsel's experience litigating Song-Beverly fee motions and the standardized nature of the motion. The Court finds that 4.0 hours was reasonably necessary to prepare the motion, review the opposition, prepare the reply, and attend the hearing. Accordingly, the Court will strike 5.3 hours.

(Acosta Decl., ¶ 15, Ex. A; Opp., pp. 4-7.)

Lodestar Multiplier

The Court declines to apply a lodestar multiplier. While Plaintiff's counsel undertook the representation on a contingent basis, the contingency risk in this matter does not warrant an enhancement. The risk of nonpayment was mitigated by the Song-Beverly Consumer Warranty Act's mandatory fee-shifting provision, which provides prevailing plaintiffs with a statutory right to recover reasonable attorney's fees and costs. Moreover, this was a relatively routine lemon law action that did not present novel or particularly complex legal issues. The matter resolved through settlement before trial, and Plaintiff has not demonstrated that counsel faced an exceptional risk of nonrecovery or that the lodestar amount fails to adequately compensate counsel for the work performed.

Accordingly, the

Court strikes a total of 26.3 hours from Plaintiff's fee request, resulting in a reduction of \$9,869.22 from the requested lodestar of \$37,612.50. The Court therefore awards Plaintiff attorney's fees in the amount of \$27,743.28.

Motion to Strike or Tax Plaintiff's Memorandum of Costs

A prevailing party

is entitled to recover costs, including attorneys' fees, as a matter of right, except as otherwise expressly provided by statute. (See Code Civ. Proc., §§ 1032, subd. (a)(4), 1032, subd. (b), 1033.5.)

"A 'verified

memorandum of costs is prima facie evidence of [the] propriety' of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486-1487 [italics and brackets omitted].) Costs otherwise allowable as a matter of right may be disallowed if the court determines they were not reasonably necessary, and the court has power to reduce the amount of any cost item to an amount that is reasonable. (See Perko's Enterprises, Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 245 [finding that "the intent and effect of section 1033.5, subdivision (c)(2) is to authorize a trial court to disallow recovery of costs, including filing fees, when it determines the costs were incurred unnecessarily"].)

Code of Civil

Procedure section 1033.5 sets forth the items of costs which may or not be recoverable in a civil action.

In a lemon law

action, as here, Civil Code section 1794, subdivision (d) provides that a prevailing buyer "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Civil Code section

1794, subdivision (d) "permits the prevailing buyer to recover both 'costs' and 'expenses.' Examining the language of

the statute [citation], it is clear the Legislature intended the word 'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (Jensen v. BMW of North America, Inc., (1995) 35 Cal.App.4th 112, 137, as modified on denial of reh'g (June 22, 1995).) The Legislature included awards of "costs and expenses" in the statute "to cover such out-of-pocket expenses as filing fees, expert witness fees, marshal's fees, etc." (Id. at 138, quoting Assem. Com. on Labor, Employment & Consumer Affairs, Analysis of Assem. Bill No. 3374 (May 24, 1978) at 2.)

Here, Plaintiffs filed a costs memorandum seeking \$1,893.50 in litigation costs.

As a preliminary matter, Plaintiff's opposition was due nine court days before the August 19, 2026 hearing, on August 6, 2026. Plaintiff did not file its opposition until August 10, 2026. Although the opposition is untimely, the Court exercises its discretion to consider it for completeness. Plaintiff is admonished, however, to comply with all applicable filing deadlines and court rules in future proceedings.

Defendant's
Objections

Defendant objects to the following costs:

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\$1,409.27:
Filing and Motion Fees

.
\$177.28:
Jury Fees

.
\$113.25:
Service of Process

.
\$130.13:

Fees for Electronic Filing or Service

\$22.39:

Other Costs

The Court declines to tax Plaintiff's claimed jury fees, service-of-process costs, and electronic filing and service fees. Plaintiff has submitted supporting documentation demonstrating that these expenses were incurred in connection with the prosecution of this action, and Defendant has not shown that they were unreasonable or unnecessary. (Code Civ. Proc., § 1033.5, subds. (a)(1), (4), (14), (c)(2), (4); Civ. Code, § 1794, subd. (d).) Plaintiff's opposition includes receipts substantiating the challenged jury fee, service-of-process charge, and electronic filing expenses.

The Court likewise declines to tax the filing and motion fees merely because certain motions were later withdrawn or rendered moot by settlement. Plaintiff explains that the challenged motions were filed before settlement and were withdrawn after the action resolved. The fact that a motion was ultimately not heard does not, by itself, establish that the filing expense was unreasonable or unnecessary when incurred.

As to the \$22.39 claimed as "Other" costs, Plaintiff's opposition does not meaningfully address Defendant's objection. Although Plaintiff asserts that no \$16.99 Carfax charge appears in the Memorandum of Costs, the worksheet expressly identifies a \$16.99 Carfax charge and a \$5.40 charge for purchase of an LASC minute order. Plaintiff does not explain why the Carfax expense was reasonably necessary to the litigation. The Court therefore taxes the \$16.99 Carfax expense. The Court declines to tax the \$5.40 minute-order charge, which the Court finds was reasonably incurred in connection with the prosecution of the action.

Accordingly, Plaintiff is awarded costs in the reduced amount of \$1,876.51.

Conclusion

Based on the foregoing, Plaintiff Vanessa Sotelo Becerra's motion for attorney's fees is GRANTED.

Defendant General Motors LLC's

motion to strike, or in the alternative, tax the memorandum of costs filed by Plaintiff Vanessa Sotelo Becerra is GRANTED IN PART and DENIED IN PART.

The Court awards Plaintiff's attorney's fees in the reduced amount of \$27,743.28 and costs in the amount of \$1,876.51, for a total award of \$29,619.79.

Defendant General Motors LLC is ordered to pay the awarded amount within 45 days of this Order.